

SENATE No. 2681

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing safety standards for BMX bicycle and motorcross tracks.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>11/4/2025</i>

SENATE No. 2681

By Mr. Fernandes, a petition (accompanied by bill, Senate, No. 2681) (subject to Joint Rule 12) of Dylan A. Fernandes for legislation to establish safety standards for BMX bicycle and motorcross tracks. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing safety standards for BMX bicycle and motorcross tracks.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. This act shall commonly be known as "Colby's Law".

2 SECTION 2. For the purposes of this act, the following terms shall have the following
3 meanings:-

4 “BMX track” refers to a facility designed for bicycle motocross racing.

5 “Motocross track” refers to a facility designed for off-road motorcycle racing.

6 “Operator” refers to any person, organization, or entity responsible for managing or
7 overseeing the operation of a BMX or motocross track.

8 “Participant” refers to any individual who actively engages in riding or competing on the
9 track.

SECTION 3. (a) All BMX and motocross tracks operating in Massachusetts must be registered with the Executive Office of Public Safety and Security.

(b) Annual permits shall be required for continued operation and shall be issued following inspection by the Executive Office of Public Safety and Security to ensure compliance with safety standards established by this act.

SECTION 5. (a) Tracks must meet minimum design and maintenance standards, including but not limited to:

(1) Proper grading and surfacing to reduce hazards.

(2) Barriers and safety netting to protect spectators

(3) Clearly marked areas for participants and spectators.

(b) Emergency medical response plans, including:

(1). On-site availability of first aid and automated external defibrillators (AEDs).

(2) A certified medical professional present during events.

(3) Established protocols for contacting emergency services.

(4) Mandatory signage displaying track rules, safety requirements, and emergency contacts.

SECTION 6. (a) Riders and participants must wear appropriate protective equipment, including:

(1) Helmets meeting U.S. Consumer Product Safety Commission (CPSC) standards.

(2) Elbow and knee pads, gloves, and body armor for motocross riders.

(b) Tracks must conduct safety briefings for new participants.

SECTION 7. All operators must maintain liability insurance to cover injuries or damages occurring on the premises.

SECTION 8. (a) Riders under 18 years of age must have written parental or guardian consent to participate.

(b) Special safety measures, such as speed limitations and restricted access to advanced courses, shall be implemented for youth riders.

SECTION 9. (a) The Executive Office of Public Safety and Security shall have the authority to enforce this act through inspections, fines, or suspension of operating permits for non-compliance.

(b) Violations of this act may result in fines ranging from \$500 to \$5,000 depending on the severity of the infraction.

SECTION 10. The Executive Office of Public Safety and Security shall develop and implement a statewide public awareness campaign about track safety, including educational materials and training programs.